Amendment of section 94.

25. In section 94 of the Income-tax Act, with effect from the 1st day of April, 2023,—

(*i*) in sub-section (8), for the word "units" wherever it occurs, the words "securities or units" shall be substituted;

(*ii*) in the *Explanation*,—

(*a*) for clause (aa), the following clause shall be substituted, namely:—

'(aa) "record date" means such date as may be fixed by—

(*i*) a company;

(*ii*) a Mutual Fund or the Administrator of the specified undertaking or the specified company referred to in the *Explanation* to clause (35) of section 10; or

(*iii*) a business trust defined in clause (13A) of section 2; or

(*iv*) an Alternative Investment Fund defined in clause (*b*) of sub-regulation (1) of regulation 2 of the Securities and Exchange Board of India (Alternative Investment Funds) Regulations, 2012, made under the Securities and Exchange Board of India Act, 1992 (15 of 1992),

for the purposes of entitlement of the holder of the securities or units, as the case may be, to receive dividend, income, or additional securities or units without any consideration, as the case may be,';

(*b*) for clause (*d*), the following clause shall be substituted, namely:—

'(*d*) "unit" shall mean,—

(*i*) a unit of a business trust defined in clause (13A) of section 2;

(*ii*) a unit defined in clause (*b*) of the *Explanation* to section 115AB; or

(*iii*) beneficial interest of an investor in an Alternative Investment Fund, defined in clause (*b*) of sub-regulation (1) of regulation 2 of the Securities and Exchange Board of India (Alternative Investment Funds) Regulations, 2012, made under the Securities and Exchange Board of India Act, 1992 (15 of 1992), and shall include shares or partnership interests.'.

सत्यमेव जयते
कोष मूलो दण्ड:
INCOME TAX DEPARTMENT